

1. All but one of the following is not the function of a liquidator.
 - A. Search for a Will of the deceased
 - B. Determination of persons who are called to the succession
 - C. Determination of the property that constitutes the succession
 - D. Administration of the succession
 - E. Payment of debts of the succession
 - F. None**
2. A person does not Jose. his capacity to succeed owing to unworthiness where_____
 - A. He is **pardoned for what he** did by the deceased.
 - B. He committed the crimes that give rise to unworthiness before the death of the deceased.
 - C. He committed the crimes that give rise to unworthiness against the brother of the deceased.
 - D. He is accused of committing the crimes that give rise to unworthiness against the spouse of the deceased against the spouse of the deceased.
 - E. All
3. An irrelevant condition for the application of the rule *paterna paternis materna maternis* is
 - A. The will of the testator.**
 - B. The fact that deceased must die intestate.
 - C. The fact that the deceased does not have surviving descendants.
 - D. The immovable nature of the property.
 - E. The issue of whether property must be acquired by the deceased from either paternal or maternal lines by Way of succession or donation.
4. The court may invalidate a will made under undue influence having regard to_____.
 - A. The conditions of the testator.
 - B. The identity of the person who exerts the undue influence on the testator.
 - C. The gravity of the influence.
 - E. A and B.**
 - D. All.

5. Which one of the following does not vitiate consent with respect to will?

- A. **Fraud.**
- B. Duress.
- C. Error.
- D. Undue influence
- E. None.

6. Where Ato Ayalew, in his will, ordered a legacy have favor of his friend, Adamu, he ordered the legatee to change his religion as a requirement to take the legacy. Which one of the following is true about this legacy?

- A. Adamu can benefit from the legacy only after complying with the requirement.**
- B. Adamu can benefit from the legacy even without complying with the requirement.
- C. The liquidators should ensure the accomplishment of the requirement.
- D. A and C.
- E. None

7. A common ground of the nullity for both public and holographic wills Is _____

- A. Failure to reduce the will in writing.**
- B. Failure to **write** the will in the presence of witnesses.
- C. Failure of the testator to write the entire will by himself.
- D. The testators' incapability to read what are included in the will.
- E. The will contains additions in the margins or between the lines.

8. Does not in any way result in the lapse of will.

- A. Dissolution of marriage after the will is made.
- B. The death of the legatee before the testator.
- C. The birth of a child after the will is made.
- D. Faure to deposit a public will in a court.**
- E. None.

9. Which one among the following is the legal consequence of the merger of the property of the inheritance with the personal property of the heirs?

- A. It **negatively affects the interests of creditors** of the deceased.
- B. It is more advantageous to creditors of the deceased.
- C. It negatively affects the interests of the personal creditors of the heirs.
- D. A and B.,
- E. A and C.

10. One of the following is incorrect about acceptance or renunciation of succession.

- A. An heir may accept or renounce the succession through his/her agent.
- B. Creditors of an heir who renounced a succession to their disadvantage do not have a legal right to apply to the court for the invalidation of the renunciation.
- C. Acceptance is legally unacceptable unless it is reduced in writing.
- D. The heir is at liberty to make conditional renunciation or acceptance.
- E. **All.**

11. Which one of the following is true about personal creditors of the heirs and creditors of the deceased?

- A. Pending liquidation, personal creditors of the heirs have a right to claim from the properties forming part of the succession.
- B. Creditors of the deceased cannot claim payment from the properties forming part of the succession after the closure of liquidation.
- C. Creditors of the deceased can claim payment from **the properties forming part of the succession after the closure of liquidation.**
- D. Post-liquidation creditors of the inheritance may claim payment from legatees by universal title even beyond the value of property the legatee has received as his share from the succession.
- E. A legatee by singular title has an equivalent status as joint guarantor in the law of contracts in relation to post-liquidation creditors of the inheritance

12. Identify a choice that is incorrect about opening of succession.

- A. It shall open after the closure of liquidation.
- B. It shall open just forty days following the death of the deceased.

C. It shall open at the main residence of the deceased at the time of making a will.

D. It shall open at the main residence of the legatees and heirs.

E. All.

13. What is the difference between unworthiness to succeed and a dispersion of a legal heir?

14. If an heir dies shortly after the death of the deceased, which one of the following is true?

A. His right to succeed shall pass to his co-heirs.

B. He loses the capacity to succeed.

C. His right to succeed shall pass to his heirs.

D. He will be declared unworthy.

E. He is considered as failing to meet the survivorship requirement

15. Succession through representation comes to the picture when, —

A. The heir appoints an agent according to the law.

B. The person who is to be called to succeed directly died before the death, of the deceased.

C. The person who is to be called to succeed directly died before the opening of the succession.

D. B & C.

E. All.

16. Which one of the following is not true about public will?

A. It shall be of no effect unless it is attended by four witnesses.

B. It can be valid notwithstanding that it is written by a third party.

C. It shall be of no effect unless it is read in the presence of the testator and witnesses.

D. It shall be of no effect unless it is signed by the testator and the witnesses forthwith.

E. A & B.

17. How should the existence and contents of a will be proved for the purpose of execution of a will?

- A. By four witnesses who attended the making of the will.
- B. By producing the will itself.**
- C. By witnesses who can testify the destruction of a will by a-third party.
- D. By the testimony of the heirs of the testator.
- E. A&B.

18. Which one of the following is true if the testator bequeathed a thing to two or more persons without specifying the portion of each?

- A. The will shall be invalidated owing to undefined object.
- B. The legatees shall take their part according to their degree of relationship with the deceased.
- C. The legatees shall have **equal rights** to the thing bequeathed to them.
- D. The legacy shall pass to the heirs-at-law,
- E. A&D.

19. Which one of the following statements is true about acceptance of succession by heirs?

- A. It can be revoked.
- B. Conditional acceptance is allowed under the law.
- C. An heir may accept a succession through his/her agent.
- D. An **heir may tacitly accept the** succession.
- E. Acceptance may be made by the creditors of the heirs.

20. Why do you think is the law so strict in laying down stringent procedures and requirement for the making of a valid will? (7%)

21. Which of the following persons can never make a valid will?

- A. **Minors**
- B. Judicially interdicted persons.
- C. Legally interdicted persons.
- D. Insane persons.
- E. Persons under violence.

22. Which one of the following is a peculiar feature of holographic will compared to public will?

- A. It has to be attested by four witnesses.
- B. It should be read in the presence of four witnesses.
- C. It should be **entirely written by the testator**.
- D. It should be dated.
- E. It should not contain cancellations.

23. One of the following validly made wills does not warrant judicial intervention?

- A. A will made by a judicially interdicted person.
- B. A will made by a legally interdicted person.
- C. A will made under undue influence.
- D. A will made **in favor of a spouse**.
- E. A will made in favor of a witness.

24. Which one of the following is not true about liquidators?

- A. testator can designate a liquidator by a will.
- B. Heirs-at-law automatically assume the capacity of liquidators.
- C. A court **can appoint a liquidator** to replace a dishonest liquidator appointed by testament.
- D. An heir who has renounced a succession can serve as a liquidator.
- E. A liquidator may be remunerated for the service.

25. If a person bequeathed the only property he has to a Friend in his first will; but later, he made another will through which he bequeathed the same Property to a Relative, who is the right beneficiary of the deceased?

A. The State.

B. The **Relative**.

C. Both the Friend and Relative.

D. The Friend.

E. The deceased legal heirs.

26. Under the Ethiopian Law of Successions, the unworthiness of a person to succeed is NOT related to _____

A. Intentional killing of the deceased.

B. Intentional killing of an ascendant of the deceased.

C. **His/her survival on the day of the death of the deceased.**

D. Intentional killing of a descendant of the deceased.

E. Tampering with the decision of the deceased to revoke his/her will.

27. At what age does a person attain testamentary capacity under the Ethiopian Law of Successions?

A 14

B. 16

C. 18

D 21

E 23

28. Which one of the following is NOT true about public will?

a. It shall be of no effect unless it is dated.

b. It shall be of no effect unless it is signed by the testator and the witnesses forthwith.

c. It shall be of no effect unless it is attended by four witnesses.

d. It can be valid notwithstanding that it is written by a third party.

e. It shall be of no effect unless it is read in the presence of the testator and witnesses.

29. Which one of the following Condition vitiates consent and result the invalidation of a will as a matter of principle?

- A. **Violence**
- B. Fraud
- C. Undue influence
- D. Error

30. All have a Capacity to Make a Will. Except

- A. Insane persons
- B. **Notoriously insane**
- C. Legally interdicted persons-
- D. None

31. Is an irrelevant factor in determining the heir's capacity to succeed the estate of the deceased?

- A. The manner in which paternity is ascertained.
- B. Age
- C. **Sex**
- D. Nationality
- E. **All**